

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
April 2, 2026
8:30 AM/1:30 PM

8. SUKHDEEP NATT V. GUNEET NATT

25FL0866

On November 13, 2025, Petitioner filed a Request for Order (RFO) seeking child support, spousal support, attorney's fees, and an order for Respondent to pay for extracurricular activities and school tuition for the children. All required documents were served by mail on November 14th. The Proof of Service indicates that a "courtesy copy of endorsed Income and Expense Declaration" was served, however after reviewing the court's file it does not appear that an Income and Expense Declaration was filed concurrently with the RFO. That said, Petitioner did file an Income and Expense Declaration on March 18, 2026. It was served on March 9th.

Respondent filed and served her Responsive Declaration to Request for Order on March 19th. She filed and served her Income and Expense Declaration on March 27th.

The Reply Declaration of Sukhdeep Natt in Support of RFO Filed on 11/13/2025 was filed on March 27, 2026. The court finds this to be late filed pursuant to Civil Procedure section 1005(b) which states all reply papers are to be filed at least five court days before the hearing date. Section 12c states, "[w]here any law requires an act to be performed no later than a specified number of days before a hearing date, the last day to perform that act shall be determined by counting backward from the hearing date, *excluding the day of the hearing* as provided by Section 12." Cal. Civ. Pro. § 12c. Section 1005(b) in conjunction with Section 12c would have made March 25, 2026 the last day for filing Petitioner's Reply Declaration. Therefore, it is late filed and has not been considered by the court.

Given that the RFO includes requests for support orders, the court is concerned with the untimely filings of Income and Expense Declarations by both parties. Pursuant to El Dorado County Rule of Court rule 8.03.01, the party requesting support shall file and serve their Income and Expense Declaration with the initial moving papers. Likewise, the party responding to a request for support must file an Income and Expense Declaration with his or her responsive documents or, where no responsive documents are filed, no less than 5 days prior to the hearing date. El Dorado Sup. Ct. Rule 8.03.01.

Here, Petitioner did not file his Income and Expense Declaration until March, over 4 months after filing the moving papers. Respondent's Income and Expense Declaration was also untimely as it was not filed with her Responsive Declaration. The court is inclined to drop this matter given the procedural defects. That said, it appears the parties are calendared for hearing on July 2nd on the issues of custody and visitation. The court is continuing this matter to join with the July 2nd hearing at 8:30am in Department 5. The

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additional time should give both parties sufficient time to review and address the Income and Expense Declaration of the opposing party. Any supplemental declarations are to be filed no later than 10 days prior to the next hearing date.

TENTATIVE RULING #8: THE COURT IS CONTINUING THIS MATTER TO JOIN WITH THE JULY 2ND HEARING AT 8:30AM IN DEPARTMENT 5. ANY SUPPLEMENTAL DECLARATIONS ARE TO BE FILED NO LATER THAN 10 DAYS PRIOR TO THE NEXT HEARING DATE.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.